

11. 9:00 AM CASE NUMBER: L25-09401

CASE NAME: CAPITAL ONE N.A. VS. AMY NILSON

***HEARING ON MOTION FOR DISCOVERY FOR ORDER THAT MATTERS IN REQUEST FOR ADMISSION OF TRUTH OF FACTS BE DEEMED ADMITTED**

FILED BY: CAPITAL ONE N.A.

TENTATIVE RULING:

Background

Plaintiff filed a Motion for Order that Matters in Request for Admission of Truth of Facts be Deemed Admitted (Motion).

Plaintiff attached the particular facts at issue, numbered One through Eight and entitled, "Set One," in Attachment One of Exhibit One to their Motion, as well as proof that they served Defendant with the discovery request, and declared that Defendant never responded to the request.

Plaintiff attached a proof of service of this Motion, indicating mail service to Defendant at the address listed on Defendant's Answer.

No response has been filed by the Defendant.

Analysis

Where a party to whom requests for admission are directed fails to serve a timely response, the propounding party may seek a court order that the genuineness of any documents and/or the truth of any matters specified in the requests be deemed admitted pursuant to Code of Civil Procedure section 2033.280. See Code Civ. Proc. § 2033.280(b).

The responding party, or the Defendant in this matter, may avoid such an outcome, under Section 2033.280(a), if they subsequently serve, before the hearing, a *substantially compliant* response AND demonstrate that the reason for the untimely response was due to mistake, inadvertence, or excusable neglect.

The propounding party may also seek the imposition of monetary sanctions. *Id.* There is no meet and confer requirement for a motion to deem matters admitted under Section 2033.280. See *St. Mary v. Superior Court* (2014) 223 Cal.App.4th 762, 777. A monetary sanction is mandatory. See Code of Civ. Proc. Section 2033.280(c).

Disposition

The court grants Plaintiff's Motion.

The Facts at issue in Exhibit One of Plaintiff's moving papers shall be deemed admitted.

Plaintiff to draw and file Order.

12. 9:00 AM CASE NUMBER: L25-09761
CASE NAME: JPMORGAN CHASE BANK N.A. VS. KATHERINE TSENG
*HEARING ON MOTION IN RE: TO SET ASIDE DEFAULT AND DEFAULT JUDGMENT
FILED BY:
TENTATIVE RULING:

Background

Defendant filed a Motion, on 3/27/26, to set aside the default judgment, which was filed on 3/25/26. Request for Entry of Default was filed on 3/17/26.

The Motion was properly noticed, and is unopposed.

Defendant cites mistake and inadvertence, claiming that she made numerous attempts to file an Answer to the Complaint, but had difficulty with the process of filing. She specifically cites procedural and formatting issues, along with providing proper fee waiver documentation.

Analysis

Defendant seeks relief under Section 473(b) of the CCP, which provides authority to the court to set aside a judgment in cases where a defendant acts or fails to act out of mistake, inadvertence, surprise or excusable neglect. The statute requires that the motion be made no later than 6 months from the time the judgment was taken.

In the instant matter, Defendant moved to set aside the Judgment only two days after Judgment was filed. Moreover, the court is not presented with any reason to doubt the veracity of her declaration that she would have timely filed an Answer had she not faced difficulty with procedural, formatting and other filing requirements.

Disposition

Defendant's Motion is granted.

Default Judgment and Entry of Default are set aside.

Defendant to file Answer within 10 days of 6/20/26.

Court will file the Order reflecting this ruling.